

CBDT Circular No. 12/2026

Issued by: Income Tax Department

Date of Issue: 15-06-2026

Subject: Clarification on Input Tax Credit for Delayed Invoices under Section 16(4)

#### 1. Background

Representations have been received from various stakeholders seeking clarification on whether Input Tax Credit (ITC) can be claimed on invoices where the supplier has delayed issuance beyond the prescribed statutory period.

#### 2. Clarification

Section 16(4) of the CGST Act provides that a registered person shall not be entitled to take input tax credit in respect of any invoice or debit note for supply of goods or services after the thirtieth day of November following the end of the financial year to which such invoice or debit note pertains, or furnishing of the relevant annual return, whichever is earlier.

Where the delay in invoice issuance is attributable to the supplier and not the recipient, and the recipient claims the credit within the statutory window measured from the date the invoice was actually made available, such credit shall not be denied solely on the ground of delayed issuance, provided all other conditions under Section 16(2) are satisfied.

#### 3. Illustration

If a supplier issues an invoice dated 20-03-2026 for a supply made in FY 2025-26 but the invoice is received by the recipient only on 05-11-2026, the recipient may still claim ITC provided the claim is made before the due date of filing the annual return for FY 2025-26, i.e., 30-11-2026.

#### 4. Applicability

This clarification applies to all pending assessments and audits as of the date of this circular. Field formations are directed to apply this clarification uniformly.

CBDT Circular No. 12/2026, dated 15-06-2026.